

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 727

BY STATE AFFAIRS COMMITTEE

AN ACT

RELATING TO SEX CRIMES; AMENDING SECTION 18-6605, IDAHO CODE, TO REVISE A PROVISION REGARDING VIDEO VOYEURISM; AMENDING SECTION 18-6606, IDAHO CODE, TO REVISE A PROVISION REGARDING A PENALTY; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 18-6605, Idaho Code, be, and the same is hereby amended to read as follows:

18-6605. VIDEO VOYEURISM. (1) As used in this section:

(a) "Broadcast" means the electronic transmittal of a visual image with the intent that it be viewed by a person or persons.

(b) "Disseminate" means to make available by any means to any person.

(c) "Imaging device" means any instrument capable of recording, storing, viewing or transmitting visual images.

(d) "Intimate areas" means the nude genitals, nude pubic area, nude buttocks or nude female nipple.

(e) "Person" means any natural person, corporation, partnership, firm, association, joint venture or any other recognized legal entity or any agent or servant thereof.

(f) "Place where a person has a reasonable expectation of privacy" means:

(i) A place where a reasonable person would believe that he could undress, be undressed or engage in sexual activity in privacy, without concern that he is being viewed, photographed, filmed or otherwise recorded by an imaging device; or

(ii) A place where a person might reasonably expect to be safe from casual or hostile surveillance by an imaging device; or

(iii) Any public place where a person, by taking reasonable steps to conceal intimate areas, should be free from the viewing, recording, storing or transmitting of images obtained by imaging devices designed to overcome the barriers created by a person's covering of intimate areas.

(g) "Publish" means to:

(i) Disseminate with the intent that such image or images be made available by any means to any person; or

(ii) Disseminate with the intent that such images be sold by another person; or

(iii) Post, present, display, exhibit, circulate, advertise or allow access by any means so as to make an image or images available to the public; or

(iv) Disseminate with the intent that an image or images be posted, presented, displayed, exhibited, circulated, advertised

or made accessible by any means and to make such image or images available to the public.

(h) "Sell" means to disseminate to another person, or to publish, in exchange for something of value.

(i) "Sexual act" includes, but is not limited to, masturbation; genital, anal or oral sex; sexual penetration with an object; or the transfer or transmission of semen upon any part of the depicted person's body.

(2) A person is guilty of video voyeurism when, with the intent of arousing, appealing to or gratifying the lust or passions or sexual desires of such person or another person, or for his own or another person's lascivious entertainment or satisfaction of prurient interest, or for the purpose of sexually degrading or abusing any other person, he uses, installs or permits the use or installation of an imaging device at a place where a person would have a reasonable expectation of privacy, without the knowledge or consent of the person using such place.

(3) A person is guilty of video voyeurism when:

(a) With the intent to annoy, terrify, threaten, intimidate, harass, offend, humiliate or degrade, he intentionally disseminates, publishes or sells, or threatens or conspires to disseminate, publish or sell, any image of another person who is identifiable from the image itself or information displayed in connection with the image and whose intimate areas are exposed, in whole or in part, or who is engaged in a sexual act;

(b) He knew or reasonably should have known that the person depicted in the image understood that the image should remain private; and

(c) He knew or reasonably should have known that the person depicted in the image did not consent to the dissemination, publication or sale of the image.

(4) A violation of this section is a felony.

(5) This section does not apply to:

(a) An interactive computer service, as defined in 47 U.S.C. 230(f)(2), an information service, as defined in 47 U.S.C. 153 or a telecommunication service, as defined in section 61-121(2) or 62-603(13), Idaho Code, for content provided by another person, unless the provider intentionally aids or abets video voyeurism;

(b) Images involving voluntary exposure in public or commercial settings; or

(c) Disclosures made in the public interest including, but not limited to, the reporting of unlawful conduct or the lawful and common practices of law enforcement, criminal reporting, legal proceedings or medical treatment.

SECTION 2. That Section 18-6606, Idaho Code, be, and the same is hereby amended to read as follows:

18-6606. DISCLOSING EXPLICIT SYNTHETIC MEDIA. (1) A person is guilty of disclosing explicit synthetic media when the person knowingly:

(a) Discloses explicit synthetic media and knows or reasonably should know that:

(i) An identifiable person portrayed in whole or in part in the explicit synthetic media did not consent to such disclosure; and

1 (ii) Disclosure of the explicit synthetic media would cause the
2 identifiable person substantial emotional distress;

3 (b) Discloses explicit synthetic media with the intent to annoy, ter-
4 rify, threaten, intimidate, harass, offend, humiliate, or degrade an
5 identifiable person portrayed in whole or in part in the explicit syn-
6 thetic media; or

7 (c) Possesses and threatens to disclose explicit synthetic media with
8 the intent to obtain money or other valuable consideration from an iden-
9 tifiable person portrayed in whole or in part in the explicit synthetic
10 media.

11 (2) A person who violates subsection (1) of this section is guilty of a
12 misdemeanor unless such person is guilty of a felony as provided in subsec-
13 tion (3) of this section.

14 (3) A person who violates subsection (1) of this section when the iden-
15 tifiable person is under eighteen (18) years of age or when the person was
16 previously found guilty of a violation of this section or a similar statute
17 in another state or any local jurisdiction within the past five (5) years,
18 notwithstanding the form of the judgment or withheld judgment, is guilty of
19 a felony punishable by imprisonment for a period no more than ten (10) years,
20 or by a fine of no more than twenty-five thousand dollars (\$25,000), or by
21 both such fine and imprisonment.

22 (4) As used in this section:

23 (a) "Disclose" means to make available by any means to any person.

24 (b) "Explicit synthetic media" means synthetic media that depicts or
25 appears to depict:

26 (i) An identifiable individual engaged in sexual conduct;

27 (ii) The intimate parts of another individual or artificially
28 generated intimate parts presented as the intimate parts of an
29 identifiable individual; or

30 (iii) The display or transfer of sexual bodily fluids onto any part
31 of the body of an identifiable individual or from the body of an
32 identifiable individual.

33 (c) "Identifiable individual" means a person who is portrayed in whole
34 or in part in synthetic media and who is recognizable by the person's
35 face, likeness, or other distinguishing characteristic, such as a
36 unique birthmark or other recognizable feature.

37 (d) "Intimate parts" means the nude genitals, pubic area, anus, or
38 postpubescent female nipple.

39 (e) "Realistically" means that the synthetic media is sufficiently
40 convincing such that an ordinary person viewing the synthetic media
41 would conclude that it is an actual image or video of the identifiable
42 person but does not include drawings, cartoons, or paintings.

43 (f) "Sexual conduct" means actual or simulated sexual intercourse,
44 oral-genital contact, manual genital contact, genital-anal contact,
45 oral-anal contact, or other physical-genital contact.

46 (g) "Synthetic media" means any image or video created or altered us-
47 ing technical means, such as artificial intelligence, to realistically
48 misrepresent an identifiable individual as engaging in conduct in which
49 the identifiable individual did not engage.

1 (h) "Valuable consideration" includes but is not limited to sexually
2 explicit images or video from the identifiable individual portrayed in
3 the synthetic media.

4 (5) Subsection (1) (a) of this section shall not apply when:

5 (a) The disclosure is made for the purpose of a criminal investigation
6 or prosecution that is otherwise lawful;

7 (b) The disclosure is for the purpose of, or in connection with, the re-
8 porting of unlawful conduct;

9 (c) The explicit synthetic media relates to a matter of public interest
10 and disclosure serves a lawful public purpose, provided that explicit
11 synthetic media does not relate to a matter of public interest merely
12 because a public figure is portrayed in the explicit synthetic media;

13 (d) The disclosure is for legitimate scientific research or educa-
14 tional purposes; or

15 (e) The disclosure is made in the normal course of civil legal proceed-
16 ings and consistent with common practice or is protected by court order
17 that prohibits further dissemination.

18 (6) The provisions of this section shall not apply to an interactive
19 computer service, as defined in 47 U.S.C. 230(f) (2); an information service,
20 as defined in 47 U.S.C. 153; or a telecommunication service, as defined in
21 section 61-121(2) or 62-603(13), Idaho Code, for content provided by another
22 person, unless the provider intentionally aids or abets disclosing explicit
23 synthetic media.

24 (7) If any provision of this section or the application thereof to any
25 person or circumstance is held invalid, such invalidity shall not affect
26 other provisions or applications of this section that can be given effect
27 without the invalid provision or application, and to this end the provisions
28 of this section are declared to be severable.

29 SECTION 3. An emergency existing therefor, which emergency is hereby
30 declared to exist, this act shall be in full force and effect on and after
31 July 1, 2026.